BOARD RECORDS
CHARGE 115-002

S/H

2018142873

Rcpt: 1984602
DS: 0.00 Rec: 35.50
08/23/2018 E. M. IT: 0.00
Dpty Clerk

PAULA S. O'NEIL, Ph.D. PASCO CLERK & COMPTROLLER
08/23/2018 08:57am 1 of 4
OR BK 9776 PG 3543

INTERLOCAL AGREEMENT BETWEEN PASCO COUNTY AND THE MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT

THIS INTERLOCAL AGREEMENT made and entered into by and between Pasco County, a political subdivision of the State of Florida, by and through its Board of County Commissioners hereinafter (the "County"), and the Meadow Pointe II Community Development District, a special purpose local government established under Florida Statutes, Chapter 190, by Pasco County Ordinance 94-13, (the "CDD"), jointly referred to as the "Parties,"

WITNESSETH

WHEREAS, Pasco County is a general purpose local government which is a political subdivision of the State of Florida; and

WHEREAS, the CDD is a special purpose local government established by Pasco County Ordinance 94-13; and

WHEREAS, on January 18, 2017, the CDD initiated the conflict resolution procedure with Pasco County pursuant to Chapter 164, Florida Statutes, upon the adoption of Resolution No. 2017-3; and

WHEREAS, the County maintains that it is not responsible for the maintenance of sidewalks it did not construct in dedicated right-of-way located in the CDD unless the land beneath is owned by the County in fee simple, the County expressly agreed to maintain the sidewalks, or the County performed actual maintenance on the sidewalks; and

WHEREAS, the CDD maintains the County is responsible for maintaining sidewalks within dedicated right-of-way pursuant to Florida law; and

WHEREAS, the parties have reached a settlement over the party responsible for maintenance of sidewalks in certain dedicated right-of-way within the CDD particularly the Deer Run and Morningside Villages; and

WHEREAS, the maintenance of the roadways in the Deer Run and Morningside Villages from curb-to-curb is unaffected by the terms of this agreement; and

WHEREAS, the term "Sidewalks" as used in this agreement is specifically referencing the areas outside of the curb-to-curb right-of-way in the Deer Run and Morningside Villages within the CDD specifically, those in Deer Run adjacent to Allegro Drive, Eagle Station Drive, Forest Glen Drive, and Stetson Drive, and those in Morningside adjacent to Bright Ray Place, Fog Hollow Drive, Golden Dawn Place, Morningmist Drive, and Morwen Place within the District; and

WHEREAS, the County and the CDD have authority pursuant to Section 163.01, Florida Statutes, to enter into interlocal agreements; and

WHEREAS, this interlocal agreement shall serve as the settlement of the conflict resolution procedure pursuant to Section 164.1057, Florida Statutes; and

WHEREAS, in many other sections of Meadow Pointe II the CDD has been undertaking the responsibilities for maintenance of sidewalks and adjacent property that lies within the CDD owned right-of-way; and

WHEREAS, given its proximity to the Meadow Pointe II community sidewalks and residents who use them, the CDD desires to maintain, control, and have responsibility for the maintenance of the Sidewalks located in the Deer Run and Morningside Villages within its boundaries.

NOW, THEREFORE, in consideration of the mutual covenants and conditions contained herein, the parties hereto agree as follows:

1. Recitals. The foregoing recitals are true and correct and are hereby incorporated herein by reference.

2. Transfer of Sidewalks Maintenance.

Subject to Section 3 below, to the extent County has any duty for maintenance of the Sidewalks constructed now or in the future within the Morningside and Deer Run Villages' right-of-way, which was dedicated to Pasco County for the use and benefit of the Public pursuant to a recorded subdivision plat within the boundaries of Meadow Pointe II, such duty is hereby transferred to the CDD.

3. CDD's Maintenance of the Sidewalks.

A. The CDD's maintenance of the Sidewalks includes the authority to maintain, control, repair, or improve sidewalks, and to regulate, warn, or guide pedestrian traffic on the Sidewalks, regardless of any future alteration, realignment, construction, extension, widening of the adjacent roads, and to pay all costs associated therewith.

B. The CDD shall not close or barricade the Sidewalks to pedestrian traffic, other than temporarily for maintenance, repair, accidents, emergencies, and miscellaneous special events.

C. In exchange for a one-time payment in the amount of $15,000.00 from the County to the CDD, and upon receipt of such payment and except as set forth below, the County shall not have any further or continuing maintenance, rights or responsibilities with regard to the Sidewalks.

D. Transfer of maintenance to the CDD includes the Sidewalks only. To the extent permitted by applicable law and specifically without waiving its sovereign immunity protections under Section 768.28, Florida Statutes, or otherwise, CDD agrees to indemnify and hold County harmless against all claims and causes of action that arise out of CDD's maintenance of the Sidewalks.

E. Nothing in this Interlocal is intended to affect, burden or eliminate any utility easement or any privilege or right possessed by the holder of an easement within dedicated rights-of-way in the CDD boundaries.

4. Notice. Any notice, statement, demand, or other communication required or permitted to be delivered or served or given by either party hereto to the other, shall be deemed

delivered or served or given when sent, if mailed in any general or branch United States Post Office enclosed in a registered or certified envelope, with a copy via electronic mail, addressed to the respective parties as follows:

COUNTY:	County Administrator West Pasco Government Center 8731 Citizens Drive, Suite 340 New Port Richey, FL 34654 pcadmin@pascocountyfl.net
With a Copy to:	County Attorney's Office West Pasco Government Center 8731 Citizens Drive, Suite 340 New Port Richey, FL 34654
CDD:	Chairman Board of Supervisors of the Meadow Pointe II Community Development District 30051 County Line Rd Wesley Chapel, Florida 33543-6778 Bob.Nanni@inframark.com clubhouse@mpiicdd.org
With a Copy to:	Andrew Cohen, Esq. Board Attorney Persson & Cohen, P.A. 6853 Energy Court Lakewood Ranch, FL 34240 ACohen@swflgovlaw.com

Notwithstanding the foregoing, each party shall be entitled to change such address by notice given pursuant to this paragraph.

5. Miscellaneous.

A. This Interlocal Agreement constitutes and contains the entire agreement of the parties and shall supersede any and all prior negotiations, correspondence, undertakings, and agreements among the parties, and may be attached as an exhibit to any further legal instruments, including the CDD's anticipated Resolution terminating the conflict resolution process under Chapter 164, Florida Statutes.

B. This Interlocal Agreement may be executed in any number of counterparts, each of which shall be an original, but which taken together shall constitute one and the same instrument.

C. This Interlocal Agreement in all respects shall be governed by the laws of the State of Florida, including the State of Florida's conflicts law.

D. If any part of this Interlocal Agreement is found invalid or unenforceable by any court, such invalidity or unenforceability shall not affect the other parts of this Interlocal Agreement and to that end, this Interlocal Agreement is declared severable.

E. The rights, benefits, duties, and obligations of this Interlocal Agreement may not be assigned to any person or political subdivision without the expressed written permission of the non-assigning party.

F. The parties agree that all actions or proceedings arising in connection with this Interlocal Agreement shall be tried and litigated exclusively in the state or federal (if permitted by law and a party elects to file an action in federal court) courts located in Pasco County or, in the case of federal court, the Middle District Court in Tampa, Florida. Each party shall bear its own attorney's fees and costs in any legal proceeding between the parties in connection with this Interlocal Agreement.

6. Recording and Effective Date. This Interlocal Agreement and any subsequent modification hereto, shall be effective upon signing by both of the parties and recording in the official records of the Clerk of the Circuit Court in and for Pasco County as provided by Section 163.01(11), Florida Statutes.

IN WITNESS WHEREOF, the parties hereto have executed the foregoing Interlocal Agreement:

ATTEST:

BY _____
PAULA S. O' NEIL, Ph.D.
Clerk & Comptroller

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

BY _____
Chairman

APPROVED
IN SESSION

DATE: AUG 21 2018

PASCO COUNTY
BCC

COUNTY COMMISSIONERS ORGANIZED JUNE 2nd 1887 PASCO COUNTY, FLORIDA
SEAL

MEADOW POINTE II COMMUNITY
DEVELOPMENT DISTRICT

_____
CHAIRMAN, Meadow Pointe II, Board of
Supervisors

DATE: 7-18-18